Examino

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Policy

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Competitor website

01 | Privacy Policy

https://examino.ai/en/legal/privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

Privacy Policy

Article 1: Preamble

This policy informs users about the collection of personal data, defined as any information that can identify a user (surnames, first names, age, address, email, location, IP address). It details users' rights, identifies the data controller, lists the recipients of the data and explains the cookie policy.

This policy supplements the Legal Notice and the Terms of Use.

Article 2: Principles relating to the collection and processing of personal data

In accordance with European Regulation 2016/679, personal data must be:

Processed lawfully, fairly and transparently

Collected for specified, explicit and legitimate purposes

Adequate, relevant and limited to what is necessary

Accurate and kept up to date where necessary

Kept in a form permitting identification for an appropriate period

Processed with appropriate security against unauthorised or unlawful processing

Processing is lawful if at least one of the following conditions is met:

Consent of the data subject

Performance of a contract

Compliance with a legal obligation

Protection of vital interests

Performance of a task carried out in the public interest

Legitimate interests of the data controller or a third party

Article 3: Personal data collected and processed

Article 3.1: Data collected

The personal data collected includes:

Identification data (surname, first name, email address)

Documents uploaded by users (exam subjects, students' exam papers)

Application usage data (login history, actions performed)

Browsing data (cookies, IP address)

The purposes of the processing are:

Creation and management of the Examino account

Provision of the requested services (upload, storage and processing of documents)

Assistance with using the application

Improvement of the services and development of new features

Communication about updates and new features

Compliance with legal and regulatory obligations

Article 3.2: How data is collected

Data collected automatically includes:

IP address

Connection data (date, time)

Browser type

Strictly necessary cookies

Other data is collected during specific operations:

Registration: surname, first name, email (account creation)

Document upload: exam subjects and exam papers (provision of the service)

Use of features: interaction data (improvement)

Data is retained for a period of 6 years after the end of use of the services. The company may retain certain data beyond this period to fulfil its legal or regulatory obligations.

Article 3.3: Data hosting, processors and transfers

Personal data is stored within the European Union / European Economic Area:

Database: PlanetScale on AWS, Frankfurt region (eu-central-1, Germany), including backups

Files: Backblaze, eu-central-003 region (Amsterdam, Netherlands)

Application processing: Vercel, Paris (cdg1) and Frankfurt (fra1) regions

Customer support and messaging: Intercom Regional Data Hosting, data stored in the European Union on AWS eu-west-1 (Dublin, Ireland)

Some of our processors are companies established in the United States. Each is governed by a data processing agreement compliant with Article 28 of the GDPR and, for any processing involving access from a third country, by a valid transfer mechanism: certification under the EU-US Data Privacy Framework and/or the European Commission's Standard Contractual Clauses, supplemented by transfer impact assessments.

Content transmitted to artificial intelligence model providers is subject to the minimisation measures described in Article 3.4 (automatic redaction, submissions of the original version limited to the minimum necessary) and to a contractual no-training commitment: providers do not use the submitted content to train their models and retain it only for a limited period (30 to 55 days depending on the provider), solely for security and abuse-detection purposes, before deletion.

The complete and up-to-date list of our processors - including the named list of artificial intelligence model providers, with each one's role, country, data location and contractual safeguards - is published and kept up to date on the dedicated page: https://examino.ai/en/legal/subprocessors. Any change to this list is subject to prior notice in accordance with Article 28(2) of the GDPR.

Security measures include:

Strict access control and logging

Regular backups for integrity and availability

Article 3.4: Minimisation - automatic redaction of students' exam papers

Examino applies specific minimisation measures to students' exam papers uploaded by users:

Automatic redaction: upon upload, the student's name and any directly identifying elements detected are automatically masked, and it is this redacted version that is used for most of the artificial intelligence processing. Certain initial operations, first and foremost the very detection of the elements to be masked, nevertheless require submitting the original exam paper to an artificial intelligence model: these submissions are limited to the minimum necessary, before the redacted version takes over. The teacher continues to view the original exam paper in the application.

Neutralisation of handwriting: whenever the nature of the exam paper allows, the identifying character of the student's handwriting is neutralised before analysis.

No training and limited retention by model providers: the artificial intelligence model providers to which this content is transmitted contractually undertake not to use the submitted data to train their models; they retain it only for a limited period (30 to 55 days depending on the provider), solely for security and abuse-detection purposes, before deletion.

These measures constitute pseudonymisation within the meaning of the GDPR, not anonymisation: the teacher, who holds the exam papers and knows their students, remains able to re-identify them, and identifying elements may exceptionally escape redaction. Any user noticing a missed redaction is invited to report it to dpo@examino.ai.

Article 3.5: No solely automated decision-making (Article 22 GDPR)

Examino makes no decision producing legal effects or significantly affecting a person that would be based solely on automated processing, within the meaning of Article 22 of the GDPR.

In particular, no grade or comment is assigned to a student automatically: the results produced by the artificial intelligence models are proposals, systematically submitted for review by the teacher, who may freely modify or discard them and who remains the sole decision-maker regarding the grade and the comments given. The application is designed to make this human review effective (criterion-by-criterion detail, free editing, traceability of what was generated by the AI and what was decided by the teacher).

For any question about a grade or a comment, the student or their legal guardians should contact the teacher or the school, which has access to the details of the grading. How the artificial intelligence works is described in our transparency notice: https://examino.ai/fr/legal/ia.

Article 4: Data controller and data protection officer

Article 4.1: The data controller

EXAMINO, a simplified joint-stock company (société par actions simplifiée) with a share capital of €1,000, registered office: 49 RUE DE PONTHIEU 75008 PARIS, registered with the Paris Trade and Companies Register under number 989 510 375, represented by Mr Dimitri NICOLAS.

Contact:

Post: EXAMINO, 49 RUE DE PONTHIEU 75008 PARIS

Email: dpo@examino.ai

Article 4.2: The data protection officer

EXAMINO has appointed a data protection officer (DPO), who can be reached:

by email: dpo@examino.ai

by post: EXAMINO - DPO, 49 rue de Ponthieu, 75008 Paris

The DPO is the point of contact for any question relating to the protection of personal data and the exercise of the rights of data subjects (users, students and their legal guardians). The DPO performs their duties fully independently, in accordance with Articles 37 to 39 of the GDPR.

Anyone who, after contacting EXAMINO, considers that their rights are not being respected may lodge a complaint with the CNIL (French data protection authority) (3 place de Fontenoy, TSA 80715, 75334 Paris Cedex 07 - www.cnil.fr).

Article 5: Users' rights regarding data collection and processing

In accordance with European Regulation 2016/679 and the French Data Protection Act (Law 78-17 of 6 January 1978), users have the following rights:

Right of access, rectification and erasure of data

Right to data portability

Right to restriction of and objection to processing

Right not to be subject to a decision based solely on an automated process

Right to determine what happens to one's data after death

Right to lodge a complaint with the competent supervisory authority

To exercise these rights, send a request to EXAMINO or by email to dpo@examino.ai.

The data controller may request information such as: surname and first name, email address, account, personal space or subscriber number.

For more information, visit www.cnil.fr.

Article 6: Conditions for amending the privacy policy

EXAMINO reserves the right to amend this Policy to ensure its compliance with applicable law.

Amendments do not apply retroactively to prior purchases, which remain subject to the Policy in force at the time of purchase.

Users are invited to review this Policy each time they use the services.

Published: 20 October 2024

Last updated: 30 July 2026

02 | Legal & Compliance

https://examino.ai/en/legal

Webpage text snapshot | Retrieved 10 October 2026

Legal & compliance

Examino handles what a teacher holds most sensitive: their students' exam papers. On this page you will find all of our legal and transparency documents — terms of use and sale, data protection, security and data retention.

Our commitments

01

The teacher decides, always

The AI suggests a correction; no grade is ever awarded automatically. Every paper is reviewed and validated by the teacher.

02

Names are redacted

The student's name is automatically redacted from papers, and transmissions of the original version to AI models are kept to the strict minimum.

03

Never any training on your papers

Our model providers contractually commit to never training their models on submitted content, redacted or not, and to keeping it only as long as strictly necessary for abuse detection (at most 30 to 55 days depending on the provider).

04

Your data stays in Europe

Database and files are stored in the European Union.

These documents implement the frameworks that apply to Examino: the GDPR (data protection), the European AI Act (AI transparency, Article 50), the French Consumer Code (14-day right of withdrawal, three-click cancellation) and the French law for trust in the digital economy (legal notice).

Contractual documents

The texts that govern your use of Examino. You accept them when creating an account (Terms of Use) and when taking out a subscription (Terms of Sale); they prevail in the event of a disagreement.

Terms of Use

Your rights and obligations when using the app — and our core commitment: "Examino suggests, the teacher decides".

Terms of Sale

Subscription, prices, credits, 14-day right of withdrawal, three-click cancellation.

Privacy Policy

The full details of how your data is processed and your rights: access, rectification, erasure, portability.

Legal Notice

The identity of the site's publisher, hosting and the mandatory legal information.

Accessibility Statement (RGAA)

Our level of compliance with the accessibility standard, the points still to be fixed and the available remedies.

Your data, in practice

Who keeps Examino running, where your data is stored, how it is protected and how long we keep it.

Our Subprocessors

The complete list of the companies that keep Examino running (hosting, database, AI models, payments...), where your data is located and under which contractual guarantees.

Security

How we technically protect your data: encrypted connections, access control, logging, backups.

Data Retention Periods

Your papers and results remain under your control: you delete them freely, at any time, and everything is deleted when the account is closed. Our recommended retention periods, and how to delete everything yourself.

03 | Terms of Sale

https://examino.ai/en/legal/terms-of-sale

Webpage text snapshot | Retrieved 10 October 2026

Terms of Sale

Last updated: July 7, 2026

Article 1 - Identification of the Publisher

The Examino service is published and sold by EXAMINO, a simplified joint-stock company (société par actions simplifiée) with a share capital of €1,000, whose registered office is located at 49 Rue de Ponthieu, 75008 Paris, France, registered with the Paris Trade and Companies Register under number 989 510 375, intra-Community VAT number: FR76989510375 (hereinafter “the Publisher”).

Contact: contact@examino.ai - Publication director: Mr Dimitri Nicolas, President.

Article 2 - Purpose and scope

2.1 Scope

These terms of sale (“Terms of Sale”) govern the purchase of subscriptions to the Examino solution, accessible online at app.examino.ai, between the Publisher and any natural or legal person (the “Client”).

2.2 Relationship with the Terms of Use

Use of the Application is also governed by the Terms of Use (the “Terms of Use”), which the Client accepts when creating their account. In the event of any conflict, the Terms of Sale prevail for all matters relating to the subscription, its price and its cancellation.

2.3 Consumer clients

Where the Client is a natural person acting for purposes outside the scope of their commercial, industrial, craft, liberal or agricultural activity, they qualify as a consumer within the meaning of the French Consumer Code. The provisions herein that are specific to consumers (withdrawal, mediation, statutory warranties, cancellation, jurisdiction) apply to them, and no contrary clause may be enforced against them. A salaried teacher who subscribes in a personal capacity is, as a precaution, treated as a consumer.

Article 3 - Description of the service and countries served

3.1 Description of the service

Examino is an online software solution (SaaS) that assists with the grading of exam papers. The service is offered in the form of monthly subscriptions with no commitment, each plan including a monthly allowance of grading credits. The essential characteristics of the plans are described at https://examino.ai/fr/tarifs.

3.2 Countries served

The service is marketed to Clients residing in the following countries: Member States of the European Union and of the European Economic Area, the United Kingdom, Switzerland, Monaco, Morocco and Algeria. The Publisher reserves the right to refuse or terminate, with reasonable notice and a refund of the amounts corresponding to the unserved period, any subscription originating from a country not listed, in particular where the local regulations applicable to student data cannot be satisfied.

Article 4 - Plans

4.1 Free plan

A single account per natural person;

A maximum monthly allocation of ten credits, renewed on the account's anniversary date;

If multiple accounts are created to circumvent this limit, the Publisher may, after informing the Client, suspend and then delete the excess accounts.

4.2 Paid plans

Details of the paid plans (prices, included credits, features) are available at https://examino.ai/fr/tarifs and are summarised before the order is confirmed.

4.3 Credit system

One credit allows the grading of one paper;

Credits are allocated on a fixed date each month (the subscription anniversary date);

Credits unused at the end of the monthly period are not carried over to the following period - this essential characteristic is brought to the Client's attention before subscribing;

In the event of a technical failure of the grading attributable to the Application, the credits consumed are automatically re-credited.

4.4 Switching plans

Upgrade to a higher plan: immediate effect, billed pro rata for the remaining period;

Downgrade to a lower plan: effective at the start of the following monthly period; until then, the Client retains the full benefit of their current plan.

4.5 Changes to the plans

The Publisher may change its plans and prices. Changes do not apply to subscription periods in progress; they are brought to the Client's attention at least 30 days before the renewal to which they would apply, and the Client remains free to cancel before that renewal (Article 7).

Article 5 - Prices, taxes and payment

5.1 Prices and taxes

Prices are displayed inclusive of all taxes in the currency indicated at the time of the order. For consumer Clients in the European Union, the applicable VAT is that of the consumer's country of residence (OSS one-stop-shop scheme); outside the EU, equivalent local taxes (UK VAT, Swiss VAT, etc.) are applied where registration thresholds so require. The exact amount of taxes is shown on the payment page and on the invoice.

5.2 Promotional offers and reference price

In the case of a promotional offer announcing a price reduction, the reference price displayed is the lowest price charged by the Publisher during the thirty days preceding the application of the reduction (French Consumer Code, art. L112-1-1).

5.3 Payment terms and invoicing

Payment is made online by bank card via the payment provider Stripe. The subscription is billed monthly, on the anniversary date of the subscription. Invoices can be accessed from the Client's personal account area.

5.4 Payment default

In the event of a payment default, the Publisher informs the Client and invites them to remedy the situation. Failing regularisation within 8 days of this notification, access to the paid plans may be suspended until regularisation, and the subscription may then be terminated under the conditions of Article 8.2.

Article 6 - Right of withdrawal (consumers)

6.1 Principle

The consumer Client has a period of fourteen (14) days from subscription to exercise their right of withdrawal, without having to give reasons or bear costs other than those provided for in Article 6.4 (French Consumer Code, art. L221-18).

6.2 Exercise

The right of withdrawal may be exercised by any unambiguous statement sent to contact@examino.ai, from the personal account area, or by means of the model form reproduced in Annex 1 hereto.

6.3 Immediate performance of the service

The subscription is a service performed immediately: the credits and paid features are made available upon subscription. Consequently, subscribing is subject to the consumer Client's express request that the provision of the service begin before the expiry of the withdrawal period, made by ticking the box - unticked by default - provided for this purpose in the order process. The Client then acknowledges that:

a) if they exercise their right of withdrawal after having requested immediate performance, they will have to pay the amount corresponding to the service already provided up to the communication of their decision to withdraw (French Consumer Code, art. L221-25);

b) if they use all of the period's credits before the expiry of the withdrawal period, the service will be considered fully performed and the right of withdrawal will be lost (French Consumer Code, art. L221-28 1°), which they expressly acknowledge and accept.

In the absence of this express request, the subscription cannot be finalised; if the Client subscribes, they retain their right of withdrawal under the conditions of Article 6.4 (refund less the service already provided), subject to the case of full performance referred to in b).

6.4 Refund

In the event of withdrawal, the Publisher refunds the Client within a maximum of fourteen days from receipt of the withdrawal decision, using the same means of payment, less, where applicable, the amount corresponding to the service already provided, calculated pro rata to the time elapsed between the start of the subscription and the communication of the withdrawal decision, relative to the duration of the current monthly period (prorata temporis, French Consumer Code, art. L221-25).

6.5 Professional clients

The right of withdrawal does not apply to professional Clients (legal persons, or natural persons acting in the course of their professional activity), subject to the cases of extension provided for in article L221-3 of the French Consumer Code.

Article 7 - Term, renewal and cancellation by the Client

7.1 Term

The subscription is entered into for a term of one month, with no commitment, from the day of subscription (paid plans) or account creation (free plan).

7.2 Renewal

The subscription is renewed by tacit renewal for successive one-month periods. The Client may object to renewal by cancelling at any time, under the conditions of Article 7.3. The Publisher reminds the Client of this option in accordance with articles L215-1 et seq. of the French Consumer Code, to the extent they are applicable.

7.3 Cancellation procedure

Cancellation may be carried out:

a) directly from the Client's personal account area, by means of a free online cancellation feature that is easy and direct to access (“three-click cancellation”, French Consumer Code, art. L215-1-1); or

b) by email to contact@examino.ai - the request is processed within a maximum of 5 working days, with the date of the request being authoritative.

7.4 Effects

Cancellation takes effect at the end of the current monthly period;

The Client retains full access to the service and to the remaining credits of the period until that date - in return, the current period is not refunded, as the service remains fully available to the Client until the end of the period;

No cancellation fee is charged.

Article 8 - Termination by the Publisher

8.1 For breach

In the event of a breach by the Client of these Terms of Sale or of the Terms of Use (in particular: fraudulent or abusive use, creation of multiple accounts, payment default), the Publisher sends the Client a formal notice by email describing the breach and inviting the Client to remedy it within 8 days. Failing regularisation within this period, the subscription may be terminated as of right.

By way of exception, in the event of a serious breach making it impossible to maintain the contract (proven fraud, breach of the security of the Application or of other users' data, unlawful use), termination may take place without notice, the Client being informed in writing with a statement of the reasons. The amounts corresponding to the period paid for but not served are then refunded to the consumer Client, unless the termination is based on payment fraud.

8.2 For legitimate reason

The Publisher may terminate the subscription subject to 30 days' notice in the event of discontinuation of the service, substantial change to the technical operating conditions, or force majeure continuing beyond 30 days. Amounts paid for unserved periods are refunded.

8.3 Consequences

On the effective date of termination, access to the service ceases and unused credits are lost. The fate of the Client's data is governed by the Terms of Use (retrieval and deletion) and by the privacy policy.

Article 9 - Statutory warranties

9.1 Statutory warranty of conformity and hidden defects

The consumer Client benefits from the statutory warranty of conformity for digital content and services provided for in articles L224-25-12 et seq. of the French Consumer Code: the Publisher is required to provide a service that conforms to the contract and is liable for conformity defects arising during the continuous provision of the service. In the event of a defect, the consumer is entitled to have the service brought into conformity free of charge or, failing that, to a price reduction or termination of the contract, under the statutory conditions. They also benefit from the warranty against hidden defects under the conditions of articles 1641 et seq. of the French Civil Code.

9.2 Mandatory nature

These statutory warranties apply independently of any other provision herein, which may neither limit nor exclude them.

Article 10 - Service availability

The Publisher undertakes to ensure availability of the platform of 95% of the time on a monthly basis, excluding scheduled maintenance operations, announced within a reasonable time. The Publisher ensures the security and regular backup of data, provides technical support and corrects malfunctions within reasonable timeframes.

Article 11 - Liability

11.1 Principle

The Publisher is liable for damage caused by a breach of its contractual obligations, under the conditions of ordinary law.

11.2 Professional clients

With respect to professional Clients only, the Publisher's liability is limited to direct and foreseeable damage, and capped at the amount paid by the Client over the last twelve months.

11.3 Consumer clients

No provision herein has the purpose or effect of limiting or excluding the Publisher's liability towards a consumer Client in the event of a breach of its legal or contractual obligations, nor of depriving the consumer of the rights conferred on them by the mandatory provisions of the French Consumer Code.

11.4 Assistance role of the Application

The role of the Application is to provide assistance with grading: final marks and comments remain the sole decision of the teacher, under the conditions described in the Terms of Use (arts. 4.5 and 4.6 of the Terms of Use).

Article 12 - Personal data protection

The processing of personal data is described in the privacy policy and, with regard to student data, in the Terms of Use (art. 5) and their DPA annex. The Publisher acts in accordance with the GDPR and the French Data Protection Act (loi Informatique et Libertés).

Article 13 - Consumer mediation

13.1 Right to mediation and prior complaint

In accordance with articles L612-1 et seq. of the French Consumer Code, any consumer Client has the right to have recourse free of charge to a consumer mediator with a view to the amicable resolution of a dispute with the Publisher, after first having attempted to resolve the dispute directly with the Publisher by means of a written complaint to contact@examino.ai.

13.2 Designated mediator

In accordance with the provisions of the French Consumer Code concerning “the consumer dispute mediation process”, after having contacted the Publisher and in the absence of a satisfactory response, the consumer Client may have recourse free of charge to a consumer mediation procedure with:

The consumer may refer the matter to the mediator within one year of their written complaint to the Publisher.

Article 14 - Changes to the Terms of Sale

The Publisher may amend these Terms of Sale. The new terms apply to new subscriptions and, for subscriptions in progress, from the renewal following their notification to the Client, which takes place at least 30 days before that renewal. A Client who does not accept the new terms may cancel free of charge before they come into force.

Article 15 - Governing law and jurisdiction

15.1 Governing law

These Terms of Sale are governed by French law. However, a consumer Client residing in another State benefits in any event from the protection of the mandatory provisions of the law of their country of habitual residence (art. 6 of the Rome I Regulation).

15.2 Amicable resolution

In the event of a dispute, the parties shall first seek an amicable solution (a complaint and then, for consumers, mediation under the conditions of Article 13).

15.3 Jurisdiction

Failing amicable resolution:

the consumer Client may bring proceedings, at their choice, before one of the courts with territorial jurisdiction under the French Code of Civil Procedure, or the court of the place where they resided at the time the contract was concluded or the harmful event occurred (French Consumer Code, art. R631-3); a consumer domiciled in another EU Member State may bring proceedings before the courts of their State of domicile (Brussels I bis Regulation);

for disputes with professional Clients, exclusive jurisdiction is granted to the courts within the jurisdiction of the Paris Court of Appeal.

Article 16 - Contact

Any question relating hereto may be sent to contact@examino.ai.

Annex 1 - Model withdrawal form

(Complete and return this form only if you wish to withdraw from the contract and you are a consumer.)

For the attention of EXAMINO SAS, 49 Rue de Ponthieu, 75008 Paris - contact@examino.ai:

I hereby notify you of my withdrawal from the contract for the provision of the services below:

Subscribed on: …

Name of the consumer: …

Address of the consumer: …

Email address associated with the Examino account: …

Signature of the consumer (only if this form is notified on paper): …

Date: …

04 | Terms of Use

https://examino.ai/en/legal/terms-of-use

Webpage text snapshot | Retrieved 10 October 2026

Terms of Use

Last updated: 11 July 2026

1. Purpose

1.1 Scope of application and identification of the Publisher

These General Terms of Use (hereinafter the "Terms of Use") govern the use of the Examino application (hereinafter "the Application") published by EXAMINO, a société par actions simplifiée (SAS) with a share capital of 1000 €, whose registered office is located at 49 RUE DE PONTHIEU 75008 PARIS, registered with the Paris Trade and Companies Register (RCS Paris) under number 989 510 375, represented by Mr Dimitri Nicolas, acting as President and holding the necessary powers (hereinafter "the Publisher").

1.2 Access and professional purpose

The Application is accessible via a smartphone, tablet or computer connected to the Internet. It is intended strictly for professional use in the context of teaching.

1.3 Acceptance of the Terms of Use

Any use of the Application implies the full and complete acceptance of these Terms of Use by the user. If the user does not accept these terms, they must refrain from using the Application.

2. Description of the service

2.1 Purpose of the Application

Examino is an application that assists with the marking of exam papers, intended for teachers and instructors at educational institutions, from primary to higher education, across all subjects.

2.2 Features

The main features of the Application include:

a) Importing the exam questions in PDF format or another format specified by the Publisher.

b) Scanning exam papers using the camera of the user's smartphone.

c) Configuring the marking scheme and the expected answers for each exam question.

d) The automated analysis and marking of the scanned papers.

e) The presentation of marking results, including marks, overall assessments and comments for each question.

2.3 Changes to features

The Publisher reserves the right to modify, add or remove features of the Application at any time, without notice and without incurring any liability.

3. Registration and access to the service

3.1 Use reserved for teaching professionals

Use of the Application is strictly reserved for teaching professionals. The Publisher reserves the right to request any supporting document proving the user's professional status.

3.2 Accuracy of information

When registering, the User undertakes to provide accurate, complete and up-to-date information. The User also undertakes to keep this information regularly updated.

3.3 Login credentials and account confidentiality

The User chooses a username and password allowing them to access the Application. The User is solely responsible for the confidentiality of this information and undertakes not to disclose it to third parties.

3.4 Refusal, suspension and deletion of accounts

The Publisher reserves the right to refuse a registration, or to suspend or delete a User's account in the event of:

a) Non-compliance with these Terms of Use

b) Provision of inaccurate information at registration

c) Prolonged inactivity of the account

d) Fraudulent or abusive use of the Application

Except in the case of a serious breach making continued access impossible (fraud, threat to the security of the Application or to other users' data, unlawful use), suspension or deletion is preceded by a reasoned notification inviting the User to remedy the breach within 8 days. In the event of prolonged inactivity, the User is notified at least 30 days before any deletion of the account.

3.5 Recovery of login credentials

If the User loses or forgets their login credentials, they may request their recovery through the procedure put in place by the Publisher.

3a. Referral programme

3a.1 Purpose and eligibility

a) The Publisher offers a referral programme allowing any User holding a personal account (the "Referrer") to recommend the Application to other teaching professionals (each a "Referred User"), by means of a personal referral link available in the Application.

b) The programme is reserved for personal accounts: accounts attached to an institution workspace do not have access to it. The Referred User must be a person who does not hold any Examino account, registering for the first time, and must meet the registration conditions of article 3 (in particular the use reserved for teaching professionals).

c) Participation in the programme is free of charge and without any obligation to purchase.

3a.2 Rewards

a) When a Referred User registers by means of the referral link, they receive 10 free marking credits, in addition to the free credits granted upon any registration.

b) The Referrer receives 10 free marking credits once the Referred User has completed the marking of their first paper in the Application.

c) The Referrer's rewards are capped at 10 rewarded referrals per rolling 12-month period. Beyond this cap, registrations via the referral link remain possible but do not give rise to any credits, either for the Referrer or for the Referred User.

3a.3 Nature of the free credits

The credits granted under the referral programme are valid for 12 months from their allocation. They may be used only in the Application for the marking of papers; they have no monetary value, are non-transferable, non-refundable and may not be exchanged or converted into money. They are used under the same conditions as the other credits of the Application.

3a.4 Information shared between the Referrer and the Referred User

In order to enable the tracking of referrals, the Referrer is informed of the registration and progress of their Referred User, and the Referred User is informed of the identity of their Referrer, in both cases solely in the form of the first name and the initial of the surname of the person concerned. No other personal data (in particular the e-mail address) is communicated by the Publisher between the Referrer and the Referred User. The data processing operations relating to the programme are described in the privacy policy.

3a.5 Fraud and abuse

a) The following are prohibited in particular: self-referral in any form whatsoever, the creation of fictitious accounts or the use of temporary e-mail addresses, the dissemination of the referral link by misleading means, unsolicited canvassing (spam) or any scheme aimed at obtaining credits artificially.

b) In the event of established fraud or abuse, the Publisher reserves the right, without prejudice to article 3.4, to suspend the benefit of the rewards for the account concerned (the referral link may remain functional for registration, without any credits being granted) and to withdraw the credits obtained fraudulently, including those already allocated.

3a.6 Modification and termination of the programme

The referral programme is a commercial benefit freely granted by the Publisher, which may modify it (in particular the amount of the rewards, the cap or the eligibility conditions) or terminate it at any time, with effect for the future. Credits already allocated on the date of the modification or termination remain acquired until their expiry.

4. Use of the Application

4.1 Use in accordance with the intended purpose

The User undertakes to use the Application in accordance with its intended purpose, namely assistance with the marking of exam papers in a professional teaching context.

4.2 User responsibilities

The User acknowledges being solely responsible for:

a) The preparation of exams and their content

b) The sitting of exams by students

c) The collection and storage of the physical papers

d) Vigilance regarding elements identifying students, under the conditions of article 5.4: the Publisher provides automatic redaction of imported papers, and the User reports any identifying element that may have escaped it

e) The verification and validation of the corrections proposed by the Application

4.3 Prohibited unlawful uses

The User undertakes not to use the Application for unlawful purposes, including:

a) Infringement of third-party intellectual property rights

b) The dissemination of defamatory or insulting content, or content infringing privacy

c) The promotion of illegal activities

d) Circumventing the Application's security systems

4.4 Prohibition of unauthorised access

The User undertakes not to attempt to access other users' data or the Publisher's systems.

4.5 The teacher's professional judgement

The User is informed that the Application does not replace their professional judgement and that they remain solely responsible for the final marks and assessments awarded to students.

4.6 Human supervision "Examino suggests, the teacher decides"

a) The corrections produced by the Application (marks, assessments, comments for each question) are suggestions intended to assist the User. No mark or assessment is awarded to a student in an exclusively automated manner within the meaning of Article 22 of the GDPR: the final decision always rests with the User.

b) The Application is designed to allow an effective human review: the User may consult, modify or reject each suggestion, question by question, before validating a correction. The User undertakes to carry out this review in a genuine manner and not in a systematically automatic way.

c) Results produced by artificial intelligence models may contain errors (omissions, misinterpretations, poorly calibrated assessments). The Application flags to the User the corrections whose estimated reliability is reduced; this flagging is an aid and does not exempt the User from the review provided for in b).

4a. Transparency regarding the use of artificial intelligence

a) The Application uses artificial intelligence systems (language and vision models provided by third-party providers) for the transcription and analysis of papers and the generation of suggested corrections. The User is informed of this in accordance with Article 50 of Regulation (EU) 2024/1689 (the "AI Act").

b) An AI transparency notice, describing the general operation of the system, its capabilities, its limitations and the human supervision measures, is made available to the User (How Examino uses artificial intelligence). The User is invited to bring it to the attention of their institution and, where applicable, of students and their legal guardians via the information notice in the institution kit (art. 5.2 b).

c) The AI model providers used contractually undertake not to use the content transmitted to them for the training of their models, and to retain it only for a limited period, solely for security and abuse-detection purposes, before deletion.

5. Confidentiality and data protection

5.1 Status of the parties under the GDPR

a) Where the User acts within the scope of their duties for an educational institution (or for the body or authority to which they report), that institution is the data controller for students' personal data, and the Publisher acts as a processor within the meaning of Article 28 of the GDPR, under the conditions of the Data Processing Agreement referred to in article 5.3.

b) Where the User acts on their own behalf (independent trainer, training organisation, private tutor), they are themselves the data controller, and the Publisher acts as the User's processor, under the conditions of the same Data Processing Agreement.

5.2 Authorisation from the institution

a) A User falling under case 5.1 a) declares and warrants that they act within the scope of their teaching duties and hold their institution's authorisation to use the Application, or undertakes to obtain that authorisation without delay from the first import of papers.

b) To this end, the Publisher provides them with an institution kit (pre-signed data processing agreement, information notice for students and legal guardians, record-of-processing sheet), which the User undertakes to forward to their head of institution or to the competent data protection officer.

c) The User shall inform the Publisher without delay if their institution refuses or withdraws its authorisation; use of the Application for the papers of students of that institution must then cease. The Publisher may request any proof of the authorisation.

5.3 Data Processing Agreement (DPA)

a) From the first import of papers, the Publisher undertakes to process students' personal data in accordance with the Data Processing Agreement annexed to these Terms of Use (the "DPA Annex"), entered into for the benefit of the data controller identified in article 5.1.

b) The DPA Annex specifies in particular: the subject matter, duration, nature and purpose of the processing, the categories of data and of data subjects, the security measures, the regime applicable to sub-processors (including AI

model providers subject to a contractual obligation of non-training and limited retention), assistance to the data controller and the fate of the data at the end of the contract.

c) In the event of any contradiction between these Terms of Use and the DPA Annex regarding the processing of students' data, the DPA Annex shall prevail.

5.4 Pseudonymisation of papers, automatic redaction and User vigilance

a) The Publisher implements automatic redaction of imported papers: the student's name and the direct identification elements detected are masked upon import, and the redacted version is used for most of the processing by the artificial intelligence models. Operations that require the original paper - first and foremost the very detection of the elements to be masked - are limited to the minimum necessary. Whenever the nature of the paper allows it, the identifying character of the student's handwriting is also neutralised before analysis.

b) This redaction constitutes pseudonymisation within the meaning of the GDPR, not anonymisation: the User, who holds the physical papers and knows the students, remains able to re-identify them, and residual identifying elements may exceptionally remain.

c) The User retains a residual duty of vigilance. The User undertakes to:

import into the Application only documents falling within its intended purpose (exam questions, marking schemes and exam papers), to the exclusion of any other document containing personal data;

report to the Publisher without delay any element identifying a student that may have escaped the automatic redaction;

not themselves introduce elements identifying students into the free-text fields of the Application (paper titles, headings, comments), beyond what the paper identification feature requires.

d) The User warrants that they have obtained all the authorisations necessary for the use of the exam papers in the Application, in accordance with the applicable regulations and article 5.2.

5.5 Publisher's responsibility

a) Automatic redaction is a minimisation measure provided by the Publisher under the conditions and within the limits described in article 5.4; it does not exempt the User from their duty of vigilance. The Publisher shall not be held liable for a breach by the User of the obligations set out in article 5.4 c).

b) The Publisher undertakes not to attempt to re-identify students from the pseudonymised papers, beyond the paper identification feature provided to the User.

5.6 Data security

a) The Publisher undertakes to implement appropriate technical and organisational measures to ensure the security and confidentiality of the data stored in the Application.

b) These measures include, in particular, encryption of exchanges (TLS), regular backups, and the implementation of strict access controls.

5.7 Users' rights

a) In accordance with the applicable regulations, the User has a right of access, rectification, erasure and portability of their personal data.

b) These rights may be exercised by contacting the Publisher at contact@examino.ai.

6. Intellectual property

6.1 Ownership of the Application

a) The Application, its content, structure, interface, algorithms and all of its components are the exclusive property of the Publisher.

b) They are protected by intellectual property laws, including copyright, trademark law and patent law.

6.2 Licence to use

a) The Publisher grants the User a non-exclusive, personal and non-transferable licence to use the Application.

b) This licence is strictly limited to the use of the Application in accordance with its intended purpose and these Terms of Use.

6.3 Prohibitions

a) Any reproduction, representation, modification or exploitation of all or part of the Application without the express authorisation of the Publisher is strictly prohibited.

b) In particular, it is prohibited to:

Copy or download all or part of the Application

Modify, adapt or create derivative works from the Application

Decompile, disassemble or attempt to access the source code of the Application

Use robots or other automated means to access the Application

6.4 User-generated content

a) The User remains the owner of the content they import into the Application (exam questions, scanned papers).

b) The User grants the Publisher a non-exclusive licence to use this content for the sole purpose of providing the service: import, redaction, transcription, analysis, marking, storage and delivery of results.

c) Imported content is not used to train artificial intelligence models, neither by the Publisher nor by its model providers (contractual non-training obligation, art. 4a c). Improvement of the Application relies on technical data and aggregated metrics, and not on the reuse of papers for purposes other than the provision of the service.

7. Liability

7.1 Publisher's liability

a) "The Publisher endeavours, to the best of its ability, to ensure the accuracy and updating of the information" published, while reserving the right to correct the content at any time and without notice.

b) The Publisher cannot, however, guarantee the accuracy, completeness or timeliness of the information made available on the Application.

7.2 Limitation of liability

a) The Publisher is liable for damage caused by a breach of its obligations, under the conditions of ordinary law. However, it is not liable for damage resulting from:

Final marking and assessment decisions, which are the sole responsibility of the User (art. 4.5 and 4.6), provided that the Application operated in accordance with its description;

The disclosure by the User of their login credentials;

Use of the Application not in accordance with its intended purpose or with these Terms of Use.

b) With regard solely to professional Users (legal entities, or natural persons acting in the course of their independent professional activity), the Publisher's liability is limited to direct and foreseeable damage and capped at the amount paid by the User over the last 12 months.

c) Nothing in these Terms of Use is intended to, or shall have the effect of, limiting or excluding the Publisher's liability towards a consumer User in the event of a breach of its legal or contractual obligations, or of setting aside the legal warranties from which the consumer benefits (in particular the legal warranty of conformity for digital services, art. L224-25-12 et seq. of the French Consumer Code, see Terms of Sale art. 9).

7.3 User's liability

a) The User is solely responsible for their use of the Application and for the consequences arising therefrom.

b) The User undertakes to indemnify the Publisher against any claim or legal action resulting from their breach of these Terms of Use.

7.4 Force majeure

The Publisher shall not be held liable for non-performance of the contract in the event of force majeure as defined by the case law of the French courts.

8. Amendments to the Terms of Use

8.1 Right to amend

The Publisher reserves the right to amend these Terms of Use at any time, in particular to adapt them to changes in the Application or in legislation.

8.2 Informing the User

The User will be informed of these amendments by any means the Publisher deems appropriate, in particular by e-mail or by notification within the Application.

8.3 Entry into force

The amended Terms of Use enter into force upon their publication online. Continued use of the Application after that date constitutes acceptance of the new Terms of Use.

8.4 Refusal of the amended Terms of Use

If the User does not accept the amended Terms of Use, they must stop using the Application.

9. Termination

9.1 Termination by the Publisher

a) The Publisher reserves the right to terminate the User's access to the Application in the event of non-compliance with these Terms of Use, under the conditions of article 3.4 (reasoned notification and 8-day period to remedy, except in the case of a serious breach).

b) For paid subscriptions, the financial consequences of termination are governed by article 8 of the Terms of Sale (refund of the unused period for the benefit of the consumer, except in the case of payment fraud).

9.2 Termination by the User

a) The User may stop using the Application at any time without notice.

b) The User may request the deletion of their account by contacting the Publisher's customer service.

9.3 Consequences of termination

a) In the event of termination, the User immediately loses access to the Application.

b) The User's data is deleted, at their request or at the Publisher's initiative, within 30 days after termination, unless a legal retention obligation applies.

10. Governing law and jurisdiction

10.1 Governing law

These Terms of Use are governed by French law.

10.2 Amicable resolution and mediation

In the event of a dispute concerning the interpretation or performance of these Terms of Use, the parties will endeavour to find an amicable solution. A consumer User may have free recourse to the consumer mediator designated in article 13 of the Terms of Sale.

10.3 Jurisdiction

Failing an amicable agreement:

a) A consumer User may bring proceedings, at their choice, before one of the courts having territorial jurisdiction under the French Code of Civil Procedure, or before the court of the place where they resided at the time the contract was concluded or the harmful event occurred (French Consumer Code, art. R631-3); a consumer domiciled in another EU Member State may bring proceedings before the courts of their State of domicile (Brussels I bis Regulation). In any event, the consumer benefits from the mandatory provisions of the law of their country of habitual residence (Article 6 of the Rome I Regulation).

b) For disputes with professional Users, exclusive jurisdiction is granted to the courts within the jurisdiction of the Paris Court of Appeal, notwithstanding multiple defendants or third-party claims.

Annex: Personal Data Processing Agreement (DPA)

The Data Processing Agreement referred to in article 5.3 forms an integral part of these Terms of Use. It is provided to institutions in the institution kit and on request at etablissements@examino.ai.

By using the Examino Application, you acknowledge that you have read, understood and accepted these Terms of Use in their entirety.